

The Empower School Complaints Procedure



Complaints Procedure

For

The Empower School Ltd

Procedure Statement

The Empower School takes the receiving of complaints as a very serious issue, we value our clients and aim to provide a quality service. The Empower School will endeavour to resolve issues quickly and to the satisfaction of the clients within the legal framework of the law and the boundaries of any relevant National Governing Bodies for the industry. At no point does our complaints procedure aim to obstruct or interfere with your statutory rights under the law.

Definitions

Definition of a Complaint

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"A complaint is an expression of dissatisfaction by one or more members of the public about the standard of service, actions or lack of action by The Empower School or its staff, whether the action was taken, or the service provided by The Empower School itself or a person or body acting on behalf of The Empower School".

Complaints will generally include allegations about:

- Failure to provide a service at the level or standard by The Empower School.
- Unhelpful or insensitive attitude of an employee of The Empower School.
- Neglect or delay in answering a query or responding to a request for service.
- Failure to follow The Empower School's agreed policies and/or procedures.
- Failure to take account of relevant matters in coming to a decision.
- Malice, bias, or unfair discrimination.

The following types of complaint are excluded from the procedure:

- Complaints which amount to a disagreement with a decision of The Empower School policy, rather than the way in which the decision has been arrived at or carried out.
- A course or development control matter where a person disagrees with course content or presentation unless the complaint relates to the way in which the matter was dealt with.
- Any decision of The Empower School under its legal powers, unless the complaint relates to the way in which the matter was dealt with.
- A matter which is, or could reasonably be expected to be, the subject of court or tribunal proceedings.

The complaints system does not cover:

- Requests for a service.
- An explanation of The Empower School policy.

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- Matters for which there is a right of appeal or legal remedy.
- Allegations of conduct that is expressly covered by other policy and procedure (i.e., matters arising under a Safeguarding concern).

Procedure if you Wish to Complain

Stage One – Informal

You should raise the matter at issue with the relevant Manager or his/her staff in order that it can be dealt with directly by the staff responsible for that school/service. It is preferable for all concerned that complaints be dealt with amicably and informally wherever possible. Complaints about Company Directors in connection with their Executive responsibilities will receive a response from Directors under Stage 3 below. All complaints will be made known to the Company Directors but dealt with at the appropriate level of management. If this course of action proves unsatisfactory then proceed to Stage Two.

Stage Two – Formal

You should contact the company with full written details of your complaint, please include details of any response already received at Stage One and set out fully why you are not satisfied.

Stage Three - Formal

If you are not satisfied with the member of staff's response to your complaint at Stage Two, of your complaint concerns a Company Director in connection with their Executive responsibilities, you should contact Head Office. At this stage, you will be asked to state specifically the full reasons for your (continuing) dissatisfaction. Please send a further email enclosing all supporting and relevant information to Head Office. Your email will be acknowledged, recorded, and reviewed by a Director, who has not already been involved at Stage Two. If the Director considers your complaint to be justified, he will consider any possible courses of action open to the Company, to resolve it and to determine the response to be made. Where Stage

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Three of the complaints procedure is reached, a panel of three people not involved in the matters detailed in the complaint will be convened; they will review the complaint and all associated documentation and will provide a decision and a response. One member of this panel must be independent of The Empower School. Where such a panel has been convened a hearing may be attended by the complainant to express their

views and case for complaint. The complainant may be accompanied to this hearing should they wish. The members of the panel who consider your complaint will normally respond to you within 15 working days of the hearing for the complaint. This response will include details of your rights to refer the matter to any relevant Ombudsman.

All copies of the panel's findings and recommendations will be made available to the following people:

- The complainant
- The subject of the complaint (where appropriate)
- The Proprietor and Directors of The Empower School

Additional Information

All complaints that become a formal issue (Stage Two or above, or those of any nature that are provided in writing or email to The Empower School) will be kept securely, along with any notes and recommendations made and the level at which the complaint was dealt with. These records will be kept securely for the time stipulated by the statutory guidance. Complaints Policy.

All complaints relating to The Empower School are kept on record and will be available for any relevant inspection.

Contact Information

By email to: gw@contactsuccess.co.uk

By post to: The Empower School, 19 Elizabeth Road, Exmouth, Devon EX8 4NT

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Business Area:	Education School/School
Effective from:	January 2025
Review date:	January 2026